

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

OSCAR VERA,

Plaintiff,

- against -

SERGEANT SEAN HONSTETTER, Shield No. 1699,
DETECTIVE JON GLADSTONE, Shield No. 5165,
DETECTIVE JULIO MICHELI, Shield No. 573,
DETECTIVE STEVEN LAFORTUNE, Shield No. 2570,
LIEUTENANT LUIS AROCHO,
DETECTIVE ADAM S. WRIGHT, Shield No. 2779,
P.O. "JOHN DOES" 1-8, and THE CITY OF NEW
YORK,

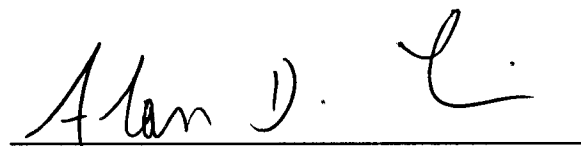
Defendants.

Index No.:

Plaintiff designates Kings
County as the place of trial.The basis of the venue is
Plaintiff's residence**SUMMONS**Plaintiff resides at
144 Humboldt Street
Brooklyn New York 11206
County of KINGS

To the above named Defendants:

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the date of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Kew Gardens, New York
May 11, 2017
ALAN D. LEVINE, ESQ.
Attorney for Plaintiff
80-02 Kew Gardens Road, Suite 307
Kew Gardens, New York 11415
(718) 793-6363
Our File No. 2387Defendants' addresses:
The City of New York
c/o Corporation Counsel
100 Church Street
New York, New York 10007Sergeant Sean Honstetter, Shield No. 1699,
Detective Jon Gladstone, Shield No. 5165,
Detective Julio Micheli, Shield No. 573, Detective
Steven LaFortune, Shield No. 2570, Lieutenant
Luis Arocho, Detective Adam S. Wright, Shield
No. 2779, and P.O. "John Does" 1-8
One Police Plaza
New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
OSCAR VERA,

Plaintiff,

VERIFIED COMPLAINT

- against -

SERGEANT SEAN HONSTETTER, Shield No. 1699,
DETECTIVE JON GLADSTONE, Shield No. 5165,
DETECTIVE JULIO MICHELI, Shield No. 573,
DETECTIVE STEVEN LAFORTUNE, Shield No. 2570,
LIEUTENANT LUIS AROCHO,
DETECTIVE ADAM S. WRIGHT, Shield No. 2779,
P.O. "JOHN DOES" 1-8, and THE CITY OF NEW
YORK,

Defendants.
-----X

Plaintiff, OSCAR VERA, by his attorney, ALAN D. LEVINE, ESQ., complaining of
the defendants herein, respectfully alleges as follows:

1. At all times relevant hereto, plaintiff, OSCAR VERA, was and is a natural
person, resident in the County of Kings, City and State of New York.

2. At all times relevant hereto, defendant SERGEANT SEAN HONSTETTER,
Shield No. 1699 (hereinafter "HONSTETTER") was and is a natural person, employed as
a sergeant by the Police Department of defendant CITY OF NEW YORK.

3. At all times relevant hereto, defendant DETECTIVE JON GLADSTONE,
Shield No. 5165 (hereinafter "GLADSTONE") was and is a natural person, employed as a
detective by the Police Department of defendant CITY OF NEW YORK

4. At all times relevant hereto, defendant DETECTIVE JULIO MICHELI, Shield
No. 573 (hereinafter "MICHELI") was and is a natural person, employed as a detective by
the Police Department of defendant CITY OF NEW YORK.

5. At all times relevant hereto, defendant DETECTIVE STEVEN LAFORTUNE, Shield No. 2570 (hereinafter "LAFORTUNE") was and is a natural person, employed as a detective by the Police Department of defendant CITY OF NEW YORK.

6. At all times relevant hereto, defendant LIEUTENANT LUIS AROCHO (hereinafter "AROCHO") was and is a natural person, employed as a lieutenant by the Police Department of defendant CITY OF NEW YORK.

7. At all times relevant hereto, defendant DETECTIVE ADAM S. WRIGHT, Shield No. 2779 (hereinafter "WRIGHT") was and is a natural person, employed as a detective by the Police Department of defendant CITY OF NEW YORK.

8. At all times relevant hereto, defendants P.O. "JOHN DOES" 1-8 were and are natural persons, employed as police officers by the Police Department of defendant CITY OF NEW YORK.

9. At all times relevant hereto, defendant CITY OF NEW YORK was and is a municipal corporation, organized and existing pursuant to the laws of the State of New York.

10. On or about April 4, 2016, this date being within ninety (90) days after the claims herein sued upon accrued, plaintiff served upon the Comptroller of the City of New York a verified written notice of claim setting forth the time, place, nature and manner in which said claim arose.

11. More than thirty (30) days have elapsed since the aforementioned verified notice of claim was served and the Comptroller has neglected and refused to make payment of said claim.

12. This action is commenced within one year and ninety days from the date the claims herein accrued.

13. This action falls within one or more of the exceptions contained within CPLR 1602.

**AS AND FOR A FIRST CAUSE OF ACTION
AGAINST ALL DEFENDANTS
(Battery)**

14. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "13" hereinabove as if more fully set forth at length herein.

15. On or about March 8, 2016, at approximately 6:00 P.M., plaintiff was the owner and lawful operator of a 2004 Honda passenger motor vehicle that was located near the intersection of Troutman Street and Wilson Avenue, in the County of Kings, City and State of New York.

16. At the aforementioned time and place, plaintiff's motor vehicle was violently and intentionally struck in the rear by an unmarked 2013 Chrysler motor vehicle, leased to the New York City Police Department and being operated by defendant AROCHO.

17. Immediately before striking plaintiff's motor vehicle as aforesaid, defendant AROCHO had been told by defendant MICHELI to cause his aforementioned vehicle to intentionally collide with plaintiff's motor vehicle.

18. As a result of its being struck as aforesaid, the motor vehicle owned and operated by plaintiff was propelled forward into a parked motor vehicle.

19. As plaintiff's vehicle moved forward as aforementioned, defendant GLADSTONE was leaning into its passenger's side window and was pointing his service weapon at plaintiff.

20. Plaintiff had a front seat passenger, who pushed defendant GLADSTONE's arm forward.

21. At that moment, defendant HONSTETTER, standing on the driver's side of plaintiff's vehicle, fired his service weapon, thereby wounding both plaintiff and defendant GLADSTONE.

22. Defendant GLADSTONE also fired his service weapon, thereby striking plaintiff as well.

23. Plaintiff suffered three bullet wounds as a result of his being intentionally shot by defendants HONSTETTER and GLADSTONE as aforementioned, two in his left leg and one in his left wrist.

24. Plaintiff was unarmed.

25. During the aforementioned events, defendants were not displaying their shields.

26. Consequently, plaintiff was not aware that the aforementioned defendants were police officers.

27. Therefore, as plaintiff, wounded, slumped in the front seat of his vehicle before being pulled out, he cried out, "I've been shot. Call the cops."

28. Plaintiff was pulled out of his motor vehicle by defendants LAFORTUNE and HONSTETTER.

29. Plaintiff was thrown to the ground by defendants LAFORTUNE and HONSTETTER.

30. Although he was obviously wounded and bleeding from his aforementioned wounds, plaintiff was beaten and pistol whipped by defendants LAFORTUNE, HONSTETTER and, upon information and belief, one or more of the "JON DOE" defendants.

31. Plaintiff was handcuffed by defendant AROCHO.

32. The beating of plaintiff by the aforementioned defendants continued even after he was handcuffed.

33. Plaintiff was placed into an ambulance.

34. As he was being placed into the ambulance, plaintiff heard a female EMT tell one of the defendants hereto, referring to plaintiff, "I don't care what you say. I'm taking him to Bellevue."

35. Defendant WRIGHT signed a criminal complaint accusing plaintiff of narcotics offenses and of attempted aggravated assault upon a police officer and reckless endangerment in the second degree.

36. The Kings County Grand Jury indicted plaintiff only on the charges involving narcotics.

37. The aforementioned force used against plaintiff by the individual defendants hereto was not reasonable under the circumstances

38. At the aforementioned time and place, the individual defendants to this action were acting within the scope of their employment by defendant CITY OF NEW YORK.

39. By reason of the aforementioned series of batteries committed against him by the individual defendants to this action, while they were acting within the scope of their employment by defendant CITY OF NEW YORK, plaintiff suffered and continues to suffer severe, permanent and painful physical and emotional injuries; has undergone, and will continue to undergo, treatment for his injuries, including surgical procedures and rehabilitation; and has been rendered sick, sore, lame and permanently scarred and disabled.

40. As a result of the series of batteries hereinabove described that were committed against him by the individual defendants, while they were acting within the scope of their employment by defendant CITY OF NEW YORK, plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which might otherwise have jurisdiction in this action and, in addition, demands punitive damages against the individual defendants.

**AS AND FOR A SECOND CAUSE OF ACTION
AGAINST DEFENDANTS HONSTETTER, GLADSTONE
and THE CITY OF NEW YORK
(Negligence)**

41. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "40" hereinabove as if more fully set forth at length herein.

42. On or about March 8, 2016, at approximately 6:00 P.M., at or near the intersection of Troutman Street and Wilson Avenue, in the County of Kings, City and State of New York, defendants HONSTETTER and GLADSTONE negligently, recklessly, and carelessly discharged their service weapons at plaintiff while he was the driver of a moving vehicle.

43. As a result of the aforementioned negligence, recklessness and carelessness of defendants HONSTETTER and GLADSTONE, and through no culpable conduct of his own, plaintiff was wounded three times.

44. At the time and place at which defendants HONSTETTER and GLADSTONE committed the aforementioned negligent, reckless and careless acts, they were acting within the scope of their employment by defendant CITY OF NEW YORK.

45. By reason of the aforementioned negligence, recklessness and carelessness of defendants HONSTETTER and GLADSTONE, while they were acting within the scope of their employment by defendant CITY OF NEW YORK, and through no culpable conduct of his own, plaintiff suffered, and continues to suffer, severe, permanent and painful physical and emotional injuries; has undergone, and will continue to undergo, treatment for his injuries, including surgical procedures and rehabilitation; and has been rendered sick, sore, lame and permanently scarred and disabled.

46. As a result of the negligence, carelessness and recklessness of defendants HONSTETTER and GLADSTONE, hereinabove described, while the aforementioned defendants were acting within the scope of their employment by defendant CITY OF NEW YORK, and through no culpable conduct of his own, plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which might otherwise have jurisdiction in this action and, in addition, demands punitive damages against defendants HONSTETTER and GLADSTONE.

**AS AND FOR A THIRD CAUSE OF ACTION
AGAINST DEFENDANT CITY OF NEW YORK
(Negligent screening, hiring, training, retaining and
supervising police officers.)**

47. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "46" hereinabove as if more fully set forth at length herein.

48. Defendant CITY OF NEW YORK was negligent in screening, hiring, training, retaining and supervising employees who it knew, or should have known, were not fit to be police officers.

49. Defendant CITY OF NEW YORK negligently trained, or failed to train, its police officers, specifically defendants HONSTETTER and GLADSTONE, with regard to the proper procedures to follow under the circumstances as they appeared herein; negligently supervised or failed to supervise its police officers, specifically defendants HONSTETTER and GLADSTONE; and negligently disciplined or failed to discipline its police officers, specifically defendants HONSTETTER and GLADSTONE.

50. Defendant CITY OF NEW YORK was negligent in its retention of its police officers, specifically defendants HONSTETTER and GLADSTONE, who defendant CITY OF NEW YORK knew, or in the course of proper and adequate investigation should have known, were unfit to continue to hold their positions of authority.

51. Defendant CITY OF NEW YORK failed to properly or effectively train, supervise and discipline its police officers, specifically defendants HONSTETTER and GLADSTONE, with regard to proper procedures under the circumstances as they appeared herein.

52. As a result of the foregoing, defendants HONSTETTER AND GLADSTONE negligently, recklessly and carelessly disregarded that provision of Procedure Number 221-01 of the Patrol Guide of the Police Department of defendant CITY OF NEW YORK, that specifically prohibits discharging one's firearm at a moving vehicle under circumstances such as those that prevailed herein.

53. As a result of the foregoing, plaintiff suffered and continues to suffer severe, permanent and painful physical and emotional injuries; has undergone, and will continue to undergo, treatment for his injuries, including surgical procedures and rehabilitation; and has been rendered sick, sore, lame and permanently scarred and disabled.

54. As a result of its aforementioned negligent screening, hiring, training, retaining and supervising of its police officers, specifically defendants HONSTETTER and GLADSTONE, defendant CITY OF NEW YORK has damaged plaintiff in an amount which exceeds the jurisdictional limits of all lower courts which might otherwise have jurisdiction in this action.

WHEREFORE, plaintiff, OSCAR VERA, demands judgment against defendants, SERGEANT SEAN HONSTETTER, Shield No. 1699, DETECTIVE JON GLADSTONE, Shield No. 5165, DETECTIVE JULIO MICHELI, Shield No. 573, DETECTIVE STEVEN LAFORTUNE, Shield No. 2570, LIEUTENANT LUIS AROCHO, DETECTIVE ADAM S. WRIGHT, Shield No. 2779, P.O. "JOHN DOES" 1-8, and THE CITY OF NEW YORK, as follows:

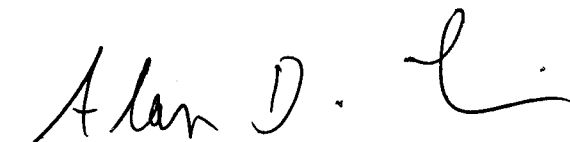
FIRST CAUSE OF ACTION: An amount which exceeds the jurisdictional limits of all lower courts which might otherwise have jurisdiction in this action, and, in addition, demands punitive damages against the individual defendants; and

SECOND CAUSE OF ACTION: An amount which exceeds the jurisdictional limits of all lower courts which might otherwise have jurisdiction in this action, and, in addition, demands punitive damages against defendants HONSTETTER and GLADSTONE; and

THIRD CAUSE OF ACTION: An amount which exceeds the jurisdictional limits of all lower courts which might otherwise have jurisdiction in this action.

Plaintiff also demands the costs and disbursements of this action, including his attorney's fees.

Dated: Kew Gardens, New York
May 11, 2017

A handwritten signature in black ink, appearing to read "Alan D. Levine", is written over a horizontal line.

ALAN D. LEVINE, ESQ.
Attorney for Plaintiff
80-02 Kew Gardens Road, Suite 307
Kew Gardens, New York 11415
(718) 793-6363
Our File No: 2387

ATTORNEY'S VERIFICATION

ALAN D. LEVINE, an attorney admitted to practice before the Courts of the State of New York, affirms the following:

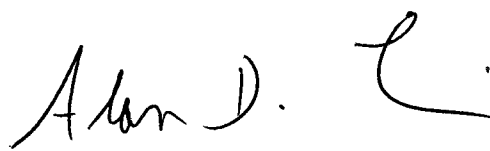
Affirmant is the attorney for plaintiff, OSCAR VERA, has read the foregoing COMPLAINT and knows the contents thereof; the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged upon information and belief, and as to those matters, affirmant believes them to be true.

This verification is made by affirmant and not by plaintiff, OSCAR VERA, because said plaintiff is not within the county where your affirmant has his office.

The ground of affirmant's belief as to all matters not stated upon affirmant's knowledge are based upon information contained in a file maintained in affirmant's office.

The undersigned affirms that the foregoing statements are true, under the penalties of perjury.

Dated: Kew Gardens, New York
May 11, 2017



ALAN D. LEVINE, ESQ.